

The Freedom Movement and the Labour Movement - The Foundation Track

Chapter F5.10 — From Zero: Congress to Independence 1885-1947, the Revolutionaries, and the Labour Movement That Produced Your Own Statutes

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NOTE · HOW TO USE THIS DOCUMENT

The chapter where Module 5 joins the rest of this manual. Three sessions take the national movement - the Congress from 1885 through Moderates and Extremists to the Lucknow Pact, then the Gandhian mass phase from Jallianwala Bagh to the Government of India Act 1935, then the last twelve years from Quit India to Partition, with the revolutionaries running alongside. The fourth session is the one that matters most for your purposes: the LABOUR movement, from the first Factories Act of 1881 and the first real trade union of 1918, through AITUC, the Royal Commission on Labour and the statutes of the 1920s to 1940s, to the EPF Act of 1952. That session closes the circle this manual opened in Module 2, because the laws you must administer were won in the period this chapter describes, largely by the same movement. Study time 4 hours.

This is the FOUNDATION layer. The safety-valve theory of the Congress's founding, the assessment of the Moderates, the reasons for Partition and the military significance of the INA are all genuinely contested, and competing readings are given rather than verdicts. Dates of sessions, resolutions and legislation are those conventionally accepted. Where a movement's outcome is disputed - notably the effect of Quit India - that is said.

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0. Why This Chapter Closes the Circle

Everything in this manual so far has been either the subject you must know or the law you must apply. This chapter is where the two meet.

WHY THIS EXISTS · WHAT THIS CHAPTER IS FOR

Module 5 has been, until now, a subject to be learned. This chapter is different, because **the last session is the prehistory of your own department.**

The statutes of Module 2 and Module 3 - the **Trade Unions Act 1926**, the **Workmen's Compensation Act 1923**, the **Payment of Wages Act 1936**, the **Industrial Disputes Act 1947**, and the **EPF and MP Act 1952** itself - **were not handed down by a benign administration.** They were produced by the same decades this chapter covers, by **strikes, commissions of inquiry, an organised trade union movement, and a nationalist leadership that took up labour's cause because it needed labour's numbers.**

So Session 4 is not an appendix. It is the answer to a question an interview board may well ask you: why does the EPF Act exist? The honest answer runs from the **first Factories Act of 1881**, through the **founding of AITUC in 1920** and the **Royal Commission on Labour of 1929-31**, to the **Constituent Assembly's decision to put provident funds in Concurrent List Entry 24** - which is where F1.8 came in.

The three political sessions are conventional and high-yield in their own right. But read them with Session 4 in view, and you will notice something the standard accounts underplay: **the national movement and the labour movement were entangled, sometimes allied and sometimes in competition**, and that relationship shaped what Indian labour law became.

PYQ CONNECTION · WHERE THE MARKS SIT

- 1 **HIGHEST yield** - the Gandhian movements with their dates and their triggers: **Non-Cooperation 1920-22 and Chauri Chaura, Civil Disobedience and the Dandi March 1930, Quit India 1942**
- 2 **HIGHEST yield** - the constitutional Acts: **1909 Morley-Minto with separate electorates, 1919 Montagu-Chelmsford with dyarchy, 1935 with provincial autonomy.** These also appear in Polity papers, so they pay twice
- 3 **HIGH yield** - session-to-year-to-president pairings: **1885 Bombay/Bonnerjee, 1907 Surat split, 1916 Lucknow, 1929 Lahore/Purna Swaraj, 1931 Karachi**
- 4 **HIGH yield** - the pacts: **Lucknow 1916, Gandhi-Irwin 1931, Poona 1932**
- 5 **HIGH yield for this manual specifically** - the labour chronology: **Factories Act 1881, Madras Labour Union 1918, AITUC 1920, Trade Unions Act 1926, Royal Commission 1929-31**
- 6 **MODERATE** - the revolutionaries: **Bhagat Singh, the Kakori and Lahore cases, Chittagong, and Bose's INA**

One warning about this chapter. It contains **more dates than the rest of Module 5 put together**, and trying to hold all of them will fail. **The tables mark what is asked. Learn the movement-to-year pairings and the Act-to-feature pairings, and let the rest be recognition.**

STUDY SESSION · CHAPTER F5.10 - THE FOUR SESSIONS

- 1 **Session 1 - 1885 to 1919:** the Congress's founding, Moderates and Extremists, Swadeshi, the Acts of 1892 and 1909, the League, and the Lucknow Pact (Section 1)
- 2 **Session 2 - 1919 to 1935:** Jallianwala Bagh, Non-Cooperation, Civil Disobedience, the Round Tables and the Poona Pact, and the Act of 1935 (Section 2)
- 3 **Session 3 - 1935 to 1947:** the provincial ministries, Quit India, the INA, the Cabinet Mission, Partition and integration, with the revolutionaries gathered here (Section 3)
- 4 **Session 4 - THE LABOUR MOVEMENT:** from 1881 to the EPF Act 1952, and the chain from this history to your own desk (Section 4)

Then **42 graded questions**.

1. Session 1 - 1885 to 1919 ★★★★★

A body of English-educated professionals petitions for reform, is told to wait, and within twenty years splits over whether petitioning works.

MUST MASTER · THE FOUNDING, AND THE TWO PHASES

Before the Congress there were regional associations, and the names are asked: the **British Indian Association** (1851), the **INDIAN ASSOCIATION** founded by **SURENDRANATH BANERJEA** in **1876** - the most important precursor - the **Madras Mahajana Sabha** and the **Bombay Presidency Association** (both 1884-85).

THE INDIAN NATIONAL CONGRESS was founded in 1885.

- 1 **A. O. HUME**, a retired British civil servant, was the moving spirit
- 2 **First session at BOMBAY, December 1885**, with **72 delegates**, presided over by **W. C. BONNERJEE**
- 3 **The "SAFETY VALVE" theory** holds that Hume founded it with official encouragement to give discontent a harmless outlet. **State it as a theory and note that it is contested:** the evidence is thin, and **the Congress's own founders had their own reasons for wanting a national forum**. The safer formulation is that **whatever Hume's motives, the organisation rapidly became something its founders did not control**

THE MODERATE PHASE, 1885-1905. Leaders: **DADABHAI NAOROJI** (the drain theory of F5.9, and the first Indian in the British House of Commons), **GOPAL KRISHNA GOKHALE**, **M. G. RANADE**, **SURENDRANATH BANERJEA**, **PHEROZESHAH MEHTA**.

- 1 **Method: petitions, resolutions, press campaigns and constitutional agitation** - working within the system on the assumption that British rule was open to reason
- 2 **Achievements, and they are real:** they **built the economic critique of colonial rule** (the drain), **created an all-India political forum**, trained a political generation, and secured the **Indian Councils Act 1892**, which introduced a limited elective element
- 3 **Their limitation** was that they had **no mass base** and **no answer when petitions were ignored**. The Extremists called their method **"political mendicancy"**

THE EXTREMIST PHASE, 1905-1919. Leaders: **BAL GANGADHAR TILAK** - **"Swaraj is my birthright and I shall have it"** - **LALA LAJPAT RAI**, **BIPIN CHANDRA PAL** (together **LAL-BAL-PAL**), and **AUROBINDO GHOSH**.

- 1 **Method: swadeshi, boycott, national education and passive resistance** - pressure rather than petition
- 2 **Their premise was different: that rights are taken, not granted**, and that a mass movement was necessary

The examinable contrast in one line: the Moderates asked the state to be reasonable; the Extremists set out to make it uncomfortable.

1.1 Partition, Swadeshi, and the constitutional advances

Event	Year	What to know
PARTITION OF BENGAL	1905	Ordered by LORD CURZON , ostensibly for administrative efficiency, in fact to divide the politically active Bengali population on communal lines. It triggered the SWADESHI MOVEMENT and was annulled in 1911
SWADESHI and BOYCOTT	1905-08	Boycott of British goods, promotion of Indian industry, national education (the Bengal National College under Aurobindo) , and samitis for volunteer organisation. The first genuinely mass political movement in India , and the moment the Congress acquired a method beyond petitioning
MUSLIM LEAGUE founded	1906	At Dhaka , under Nawab Salimullah with the Aga Khan as first president. Loyalist at first, and its founding is connected to the Aligarh tradition of F5.9
SURAT SPLIT	1907	The Congress split between Moderates and Extremists over the presidency and the Swadeshi resolution. The split lasted until 1916 and weakened both wings
MORLEY-MINTO Reforms (Indian Councils Act)	1909	Expanded the legislative councils, and - the fact that matters - introduced SEPARATE ELECTORATES for Muslims. This is the constitutional origin of communal representation, and its consequences run to 1947
Delhi Durbar; capital moved	1911	The Partition of Bengal annulled , and the capital transferred from Calcutta to Delhi
Home Rule Leagues	1916	TILAK in April (Poona) and ANNIE BESANT in September (Madras). Demanded self-government within the Empire, and kept agitation alive during the war
LUCKNOW PACT	1916	Two things at once, and both are asked: the Congress reunited its Moderate and Extremist wings , and the Congress and the Muslim League agreed on a joint scheme of reform - with the Congress ACCEPTING separate electorates. The high point of Hindu-Muslim political cooperation
MONTAGU-CHELMSFORD Reforms (GoI Act)	1919	Introduced DYARCHY in the provinces - subjects divided into "transferred" (to ministers responsible to the legislature) and "reserved" (to the Governor). Also a bicameral central legislature and an expanded franchise. Dyarchy is the term to know, and it satisfied nobody

1905 to 1919 - the events and Acts that are asked

The two constitutional facts worth more than the rest: 1909 introduced SEPARATE ELECTORATES and 1919 introduced DYARCHY. If you hold only those, most questions on the reforms are answerable.

CHECK YOURSELF · SESSION 1

- 1 Name the Indian Association's founder and year, and two other pre-Congress bodies
- 2 Give the Congress's founding year, place, first president and delegate count
- 3 State the safety-valve theory and the correct posture towards it
- 4 Name five Moderates, their method, and three genuine achievements
- 5 Name the Extremist quartet, their method, and their differing premise
- 6 Who partitioned Bengal, in what year, and when was it annulled?
- 7 What did the Swadeshi movement involve, and why does it matter?
- 8 Give the year, place and first president of the Muslim League
- 9 What happened at Surat in 1907, and for how long did it last?
- 10 What did the Acts of 1909 and 1919 each introduce?
- 11 State the two achievements of the Lucknow Pact

2. Session 2 - 1919 to 1935: The Gandhian Mass Phase ★★★★★

One man converts a petitioning organisation into a mass movement, and does it three times.

MUST MASTER · GANDHI'S ARRIVAL, AND THE FIRST THREE CAMPAIGNS

Gandhi returned from South Africa in 1915, having developed **satyagraha** there. **His first three Indian campaigns were local, specific and winnable** - and that sequencing is the point.

- 1 **CHAMPARAN, 1917** (Bihar) - against the **tinkathia** system compelling indigo cultivation. **His first Indian satyagraha, and it succeeded**
- 2 **AHMEDABAD MILL STRIKE, 1918** - a **LABOUR dispute**, over the withdrawal of a plague bonus. Gandhi advised the workers, undertook a **fast**, and secured a **35 per cent** increase. **This is the single most important event in this chapter for your purposes: it is where the national leadership entered an industrial dispute**, and Session 4 picks it up
- 3 **KHEDA, 1918** (Gujarat) - a **revenue** satyagraha for remission after crop failure

Then the trigger for the first national campaign:

- 1 **ROWLATT ACT, 1919** - permitted detention without trial. **Called the "black act"; Gandhi's protest against it was his first all-India agitation**
- 2 **JALLIANWALA BAGH, AMRITSAR, 13 APRIL 1919** - **General DYER** ordered firing on an unarmed gathering, killing several hundred. **The HUNTER COMMISSION inquired; Dyer was relieved but not punished. Tagore renounced his knighthood. This is the event that destroyed liberal Indian faith in British justice, and every account of 1920 begins here**

2.1 The three mass movements and the constitutional response

Event	Year	What to know
KHILAFAT and NON-COOPERATION	1920-22	The Congress joined the Khilafat agitation over the Turkish Caliphate, producing Hindu-Muslim joint action . Programme: surrender of titles, boycott of legislatures, courts, schools and foreign cloth , and later non-payment of taxes . Called off by Gandhi after CHAURI CHAURA, February 1922 , where a crowd burned a police post killing 22 policemen - because the movement had turned violent, which is the reason to give

Event	Year	What to know
Swaraj Party	1923	Founded by C. R. DAS and MOTILAL NEHRU to contest the legislatures and obstruct from within , against Gandhi's boycott line
SIMON COMMISSION	1927-28	Appointed to review the 1919 Act, and contained NO Indian member - hence " Simon Go Back ". Lala Lajpat Rai was injured in the Lahore lathi-charge against the protest and died soon after , which radicalised the revolutionaries of Session 3
NEHRU REPORT	1928	An all-party Indian constitutional scheme, drafted under MOTILAL NEHRU , recommending dominion status . Jinnah's FOURTEEN POINTS (1929) were his counter-proposal
LAHORE CONGRESS	Dec 1929	Presided over by JAWAHARLAL NEHRU ; adopted PURNA SWARAJ , complete independence, as the goal, and called for 26 JANUARY 1930 to be observed as Independence Day - which is why that date was later chosen for the Constitution's commencement
CIVIL DISOBEDIENCE and the DANDI MARCH	1930	Gandhi marched from Sabarmati to DANDI, 12 March to 6 April 1930 , and broke the SALT law. Salt was chosen because it was taxed, universally used, and its monopoly was indefensible - a grievance every Indian shared. The movement spread far beyond salt
GANDHI-IRWIN PACT	March 1931	Gandhi suspended Civil Disobedience; the government released prisoners and permitted salt manufacture for personal use. Gandhi agreed to attend the Second Round Table Conference
ROUND TABLE CONFERENCES	1930, 1931, 1932	London. The Congress boycotted the FIRST; Gandhi attended only the SECOND, as sole Congress representative, and it failed over the communal question; the THIRD was insignificant
COMMUNAL AWARD and POONA PACT	1932	Ramsay MacDonald's Communal Award gave separate electorates to the Depressed Classes . Gandhi fasted against it in Yerwada jail, and the POONA PACT between GANDHI and AMBEDKAR replaced separate electorates with RESERVED SEATS within the general electorate - a much larger number of seats. This is the origin of reservation of seats, and it connects directly to F1.9's Art 243D
GOVERNMENT OF INDIA ACT	1935	The longest Act ever passed by Parliament to that date, and the principal source of the 1950 Constitution . Provided provincial AUTONOMY replacing dyarchy, dyarchy at the CENTRE instead , a proposed All-India Federation including the princely states (never came into being), a Federal Court , and an extended franchise of about 10 per cent . F1.1 named this Act as the single largest source of the Constitution's text

1920 to 1935 - the movements, pacts and Acts

The three-movement pattern worth noticing, because it is a real analytical point: each mass movement was launched on a specific, universally felt grievance - the Rowlatt Act, the salt tax, the wartime refusal of self-government - and each was called off or collapsed without achieving its stated aim. What they achieved was cumulative: each left the Congress larger, more organised and more legitimate than before. So judging them by their immediate demands is the wrong test, and saying so is a good interview answer.

CHECK YOURSELF · SESSION 2

- 1 Name Gandhi's first three Indian campaigns with year and issue
- 2 Why does the Ahmedabad strike of 1918 matter for this manual?
- 3 What was the Rowlatt Act, and what happened on 13 April 1919?
- 4 Give the Non-Cooperation programme, and the reason and date it was called off
- 5 Who founded the Swaraj Party and why?
- 6 Why was the Simon Commission boycotted, and who died after the Lahore protest?
- 7 What did the Lahore Congress of 1929 resolve, and what date did it name?
- 8 Give the dates and route of the Dandi March, and say why salt was chosen
- 9 What did the Poona Pact replace, with what, and between whom?
- 10 Give four provisions of the Government of India Act 1935

3. Session 3 - 1935 to 1947, and the Revolutionaries



Twelve years from provincial ministries to Partition, and a parallel tradition that never accepted non-violence.

MUST MASTER · 1937 TO 1947 - THE SEQUENCE TO INDEPENDENCE

- 1 **PROVINCIAL ELECTIONS, 1937** - under the 1935 Act. **The Congress won large majorities and formed ministries in most provinces**; the League did poorly. **Congress ministries resigned in 1939** in protest at India being taken into the war without consultation
- 2 **LAHORE RESOLUTION, 1940** - the **Muslim League** demanded **separate states for Muslim-majority areas**. **Conventionally called the Pakistan Resolution**
- 3 **AUGUST OFFER, 1940** and the **CRIPPS MISSION, 1942** - British offers of dominion status after the war, with a right of provincial secession in the Cripps proposals. **Both rejected: the Congress wanted immediate transfer of power, the League wanted Pakistan guaranteed**
- 4 **QUIT INDIA, August 1942** - the Congress's last mass movement. **"Do or Die."** **The entire leadership was arrested within hours**, so the movement was **leaderless and became spontaneous and violent** - parallel governments were set up at **Ballia, Tamluk and Satara**. **Suppressed within months. Its significance is contested: it did not force the British out, but it demonstrated that India could not be governed by consent, and after it the question was when to leave, not whether**
- 5 **THE INA and SUBHAS CHANDRA BOSE** - Bose resigned from the Congress presidency in **1939** after disagreement with Gandhi, founded the **FORWARD BLOC**, escaped India, and took command of the **INDIAN NATIONAL ARMY** in **1943**, forming the **Azad Hind** provisional government at Singapore. **Militarily unsuccessful; politically decisive - the INA trials of 1945-46 produced enormous public sympathy, and combined with the ROYAL INDIAN NAVY MUTINY of February 1946 they raised the question the British could not answer: whether the Indian armed forces would remain reliable**. That, more than any single agitation, is what made continued rule impossible
- 6 **WAVELL PLAN and SIMLA CONFERENCE, 1945** - failed over the League's claim to nominate all Muslim members
- 7 **CABINET MISSION, 1946** - proposed a **three-tier federation with grouping of provinces** and rejected full Pakistan. Accepted then effectively repudiated by both sides; **the Constituent Assembly was elected under it**, which is the F1.1 link
- 8 **DIRECT ACTION DAY, 16 August 1946** - League-called, and it produced the **Calcutta killings**, after which communal violence made a unitary settlement politically impossible
- 9 **MOUNTBATTEN PLAN, 3 June 1947** - partition of Bengal and Punjab, referendum in the North-West Frontier and Sylhet, and a transfer of power in **August 1947**
- 10 **INDIAN INDEPENDENCE ACT 1947** - **two independent dominions from 15 August 1947**, with the **RADCLIFFE LINE** dividing Punjab and Bengal, drawn in five weeks and published after the transfer

KNOW · THE REVOLUTIONARIES - THE PARALLEL TRADITION

A continuous armed tradition ran alongside constitutional and Gandhian politics, and its names are asked.

- 1 **Bengal, first phase - Anushilan Samiti and Jugantar; KHUDIRAM BOSE** hanged in 1908 after the Muzaffarpur bombing; the **Alipore conspiracy case**
- 2 **Abroad - MADAN LAL DHINGRA** (London, 1909); **V. D. SAVARKAR**; the **GHADAR PARTY**, founded at San Francisco in **1913** by **Lala Har Dayal** and **Sohan Singh Bhakna**, which attempted a mutiny in 1915
- 3 **HINDUSTAN REPUBLICAN ASSOCIATION, 1924** - the **KAKORI train robbery, 1925**; **RAM PRASAD BISMIL** and **ASHFAQULLAH KHAN** hanged
- 4 **HINDUSTAN SOCIALIST REPUBLICAN ASSOCIATION, 1928 - BHAGAT SINGH, CHANDRASHEKHAR AZAD, RAJGURU, SUKHDEV**. Killed **Saunders** in 1928 in retaliation for the lathi-charge that killed Lajpat Rai; **threw a bomb in the Central Legislative Assembly in 1929 to "make the deaf hear"**; **Bhagat Singh, Rajguru and Sukhdev were executed on 23 MARCH 1931**. **Bhagat Singh's significance is as much intellectual as violent - he was an avowed socialist and atheist, and "Why I Am an Atheist" is his best-known writing**
- 5 **CHITTAGONG ARMOURY RAID, 1930 - SURYA SEN**, with **PRITILATA WADDEDER** and **KALPANA DATTA** among the participants - notable for **women's direct involvement**

The examinable judgement: the revolutionaries never had the numbers to expel British power, and their importance lies in sustaining the idea of resistance during periods when constitutional politics had stalled, and in the extraordinary public sympathy their trials generated. Bhagat Singh's execution did more politically than any of his actions.

BEGINNER MISTAKE · PARTITION - WHAT TO SAY AND WHAT TO AVOID

Do not offer a single cause. The defensible account names several, and their interaction.

- 1 **Separate electorates from 1909** institutionalised religion as a political category, and every subsequent settlement built on that base
- 2 **The League's transformation after 1937**, when it discovered that Congress provincial majorities left it with no share of power, and concluded that **only a separate state guaranteed one**
- 3 **Congress misjudgements**, including the refusal of coalition ministries in 1937 and the rejection of the Cabinet Mission's grouping scheme
- 4 **British policy**, which by 1946 preferred a quick exit to a contested settlement, and **Mountbatten's advancement of the date to August 1947**, which left no time to prepare for the movement of populations
- 5 **The communal violence of 1946**, which made a unitary settlement politically unsustainable

The honest formulation: Partition was the outcome of a long institutionalisation of communal representation, the League's post-1937 calculation that only a separate state secured power for its constituency, Congress miscalculations, and a British decision to leave quickly - and the human catastrophe was made far worse by the compression of the timetable. Avoid attributing it to any single actor's malice; that is the answer that fails. And the integration of the princely states is a separate question, usually asked about SARDAR PATEL and the instrument of accession, with Hyderabad, Junagadh and Kashmir as the three that were not straightforward.

4. Session 4 - The Labour Movement, and the Chain to Your Own Desk ★★★★★

This is the session the whole manual has been walking towards. The statutes of Modules 2 and 3 were won here.

START FROM ZERO · WHY LABOUR LEGISLATION ARRIVED AT ALL - THREE PRESSURES, AND ONE OF THEM IS CYNICAL

The first Indian factory legislation was not the gift of a humane administration. Three distinct pressures produced it, and **naming the third is what distinguishes a good answer.**

- 1 **Genuine humanitarian concern**, in India and Britain, at conditions in the new mills - **twelve to fifteen hour days, child labour, no weekly rest, no compensation for injury**
- 2 **Indian working-class organisation**, from the 1880s and seriously from 1918, which made conditions a political question rather than a philanthropic one
- 3 **LANCASHIRE'S SELF-INTEREST. British textile manufacturers wanted Indian mills subjected to factory regulation precisely because it would raise Indian costs and reduce their competitive advantage. This is well documented and it is the least-known driver of early Indian labour law** - and it explains an otherwise puzzling fact, that a colonial state pursuing de-industrialisation legislated on factory conditions at all

Then a fourth pressure arrives after the First World War: the ILO. The International Labour Organisation was founded in 1919 and **INDIA WAS A FOUNDING MEMBER** - the fact F2.1 established. **ILO Conventions created an external standard and an obligation to report**, and a very large part of Indian labour legislation between 1919 and 1947 traces directly to an ILO Convention. The Factories Act 1922, which introduced the sixty-hour week, is the clearest instance.

Hold all four, because "why did labour legislation develop in colonial India" is a real question, and the answer that names only humanitarianism is incomplete to the point of being wrong.

4.1 The chronology

Event or statute	Year	What to know
FACTORIES ACT	1881	The FIRST Indian factory legislation. Applied to factories with 100+ workers using power; prohibited employment of children under 7 , limited children's hours, required fencing of machinery. Very limited, and it covered no adult men at all
Bombay Millhands Association	1884	Formed by N. M. LOKHANDE , conventionally called the first Indian labour organisation - though it had no membership register or funds and was not a trade union in the modern sense. State it with that qualification
Factories Act	1891	Raised the child age limits, restricted women's working hours , and provided a weekly holiday
MADRAS LABOUR UNION	1918	Founded by B. P. WADIA . The first PROPERLY ORGANISED trade union in India , with members, subscriptions and officers. The distinction from 1884 is examinable
Ahmedabad mill strike	1918	Gandhi's intervention , from Session 2, leading to the Ahmedabad Textile Labour Association (Majoor Mahajan Sangh), 1920 - built on arbitration rather than confrontation, and the model of Gandhian trade unionism
ILO founded	1919	India a FOUNDING member. The external standard behind much of what follows

Event or statute	Year	What to know
AITUC founded	1920	The ALL INDIA TRADE UNION CONGRESS - the first national trade union federation. LALA LAJPAT RAI its first president, N. M. JOSHI the principal organiser. Founded partly so that India could send genuine worker delegates to the ILO , which is a neat illustration of the ILO's catalytic effect
Workmen's Compensation Act	1923	The first social security statute in India - employer liability for employment injury, on the F3.6 principle of occupational risk replacing the common-law fault requirement
Wadia case and the TRADE UNIONS ACT	1926	The causal link to know. In the Buckingham and Carnatic Mills litigation, B. P. Wadia's union was restrained and held exposed to liability in tort for inducing breach of contract - which meant that organising a strike was legally hazardous, so unions needed statutory protection. The Trade Unions Act 1926 provided registration and IMMUNITY from certain civil and criminal liability - the F2.2 statute, and the case is why it exists
Trade Disputes Act	1929	Conciliation and courts of inquiry, with restrictions on strikes in public utilities - the ancestor of the machinery in the Industrial Disputes Act
Meerut Conspiracy Case	1929	Communist trade unionists prosecuted; the trial publicised labour politics widely and hardened the split within AITUC
ROYAL COMMISSION ON LABOUR (WHITLEY Commission)	1929-31	The most important single inquiry in Indian labour history. Documented wages, hours, housing, indebtedness, the jobber system and the absence of social insurance. Its recommendations produced the FACTORIES ACT 1934 and the PAYMENT OF WAGES ACT 1936 , and it put provident funds and sickness insurance on the agenda for the first time
Karachi Congress resolution	1931	The Congress's own labour programme , and the link to F1.4: it demanded a living wage, limited hours, protection for women and children, and the right to organise. These clauses are the direct ancestors of Articles 39, 41, 42 and 43 of the Directive Principles - so the DPSP you learned in Module 1 were drafted by the national movement before independence, not invented in 1949
Standing Orders Act	1946	Industrial Employment (Standing Orders) Act - required employers to define and publish conditions of service. The F2.4 statute
INDUSTRIAL DISPUTES ACT	1947	The central dispute-resolution statute, and the F2.3 subject
Factories, Minimum Wages, ESI	1948	Factories Act 1948, Minimum Wages Act 1948, and the Employees' State Insurance Act 1948 - the first genuine social insurance in India, from F3.5
EPF and MP ACT	1952	The statute you are being recruited to administer. Enacted under Concurrent List Entry 24 , as F1.8 established, and giving effect to Article 41's direction on old age and want

The labour movement and its legislation - the spine of Modules 2 and 3

KNOW · THE FEDERATIONS AND WHY THERE ARE SO MANY

AITUC was founded in 1920 as a single national federation and did not stay single, because Indian trade unionism divided on political lines rather than industrial ones.

- 1 **1929 and 1931 splits** - between the **communist-led** wing and the **moderate/nationalist** wing
- 2 **INTUC, 1947** - founded by the **Congress**, immediately after independence
- 3 **HMS, 1948** - the socialists · **UTUC, 1949** · later **BMS, 1955** and **CITU, 1970**

The consequence is examinable and it matters for your work: because each major federation is attached to a political party, Indian industrial relations institutions are built around the problem of MULTIPLE unions in one workplace - which is exactly why the recognition of a bargaining agent, the definition of a representative union, and the tests in the F2.2 and F2.9 material are so elaborate. **The fragmentation is historical, and the law is a response to it.**

ACTION · THE CHAIN FROM THIS CHAPTER TO YOUR DESK - STATE THIS IN THE INTERVIEW

If a board asks why the EPF Act exists, or what the history of Indian labour law is, this is the answer, and it runs entirely through material you now hold:

Conditions in the mills from the 1870s produce the **FACTORIES ACT 1881**, driven partly by humanitarian concern and partly by **LANCASHIRE's** wish to raise Indian costs. → **Workers organise: Lokhande 1884**, and the first real union under **B. P. WADIA in 1918**. → The **ILO** is founded in 1919 with **INDIA** a founding member, creating an external standard. → **AITUC** is founded in 1920, partly to send worker delegates to the ILO. → The **Wadia litigation** shows that organising is legally hazardous, so the **TRADE UNIONS ACT 1926** grants registration and immunity. → The **WHITLEY COMMISSION of 1929-31** documents conditions and puts provident funds and sickness insurance on the agenda. → The Congress's **KARACHI RESOLUTION of 1931** commits the national movement to a living wage and the right to organise, and those clauses become **ARTICLES 39, 41, 42 and 43 of the DPSP**. → Independence brings the **ID Act 1947**, the **Factories, Minimum Wages and ESI Acts of 1948**, and the **EPF AND MP ACT 1952** under Concurrent List Entry 24. → The Act creates three schemes, a tripartite Central Board, and a quasi-judicial power under **Section 7A** - which is the power you will exercise.

That chain is the single most valuable thing in this chapter. It converts nine chapters of history and three modules of law into one continuous account, and **it answers the hardest interview question an APFC candidate can be asked: not what the law says, but why it is there.**

And note the argument it lets you make. Indian labour law was won, not granted - by strikes, by litigation that failed and forced legislation, by an international standard, and by a national movement that wrote workers' rights into its own programme sixteen years before independence. **An officer who understands that his statute has that origin administers it differently from one who thinks it is merely a rulebook.**

CHECK YOURSELF · SESSION 4

- 1 Name the four pressures behind colonial labour legislation, including the cynical one
- 2 What did the Factories Act 1881 do, and whom did it not cover?
- 3 Distinguish the Bombay Millhands Association of 1884 from the Madras Labour Union of 1918
- 4 Who founded AITUC's first presidency and who organised it, and in what year?
- 5 Why was AITUC's founding connected to the ILO?
- 6 Explain the Wadia case and why the Trade Unions Act 1926 followed from it
- 7 What did the Whitley Commission document, and which two Acts followed?
- 8 What did the Karachi resolution of 1931 demand, and which Articles descend from it?
- 9 Why are there so many trade union federations, and what does that explain about Indian labour law?
- 10 State the full chain from 1881 to Section 7A

5. Graded Practice - 42 Questions ★★★★★

5.1 Level 1 - Recognition

Q. 1. The Indian National Congress was founded in

- (a) 1876 (b) 1885 (c) 1905 (d) 1906

Q. 2. The first president of the Indian National Congress was

- (a) W. C. Bonnerjee (b) A. O. Hume (c) Dadabhai Naoroji (d) Surendranath Banerjee

Q. 3. A. O. Hume is remembered as

- (a) the first Congress president (b) the Viceroy who partitioned Bengal (c) the author of the drain theory (d) the retired British civil servant who was the moving spirit of the Congress's founding

Q. 4. The Partition of Bengal was ordered in 1905 by

- (a) Lord Curzon (b) Lord Minto (c) Lord Irwin (d) Lord Ripon

Q. 5. The Muslim League was founded in 1906 at

- (a) Lucknow (b) Lahore (c) Aligarh (d) Dhaka

Q. 6. Separate electorates for Muslims were introduced by the

- (a) Morley-Minto Reforms of 1909 (b) Indian Councils Act 1892 (c) Montagu-Chelmsford Reforms of 1919 (d) Government of India Act 1935

Q. 7. The Jallianwala Bagh massacre took place on

- (a) 6 April 1930 (b) 10 May 1919 (c) 13 April 1919 (d) 8 August 1942

Q. 8. The Non-Cooperation Movement was called off following the incident at

- (a) Meerut (b) Jallianwala Bagh (c) Dandi (d) Chauri Chaura

Q. 9. The Dandi March took place in

- (a) 1919 (b) 1922 (c) 1930 (d) 1942

Q. 10. Purna Swaraj was adopted as the Congress goal at the session held at

- (a) Lahore (b) Surat (c) Lucknow (d) Bombay

Q. 11. The Poona Pact of 1932 was concluded between

(a) Gandhi and Irwin (b) Gandhi and Jinnah (c) Gandhi and Ambedkar (d) Nehru and Jinnah

Q. 12. The Quit India Movement was launched in

(a) 1930 (b) 1935 (c) 1942 (d) 1946

Q. 13. The first Indian factory legislation was the

(a) Factories Act 1948 (b) Factories Act 1891 (c) Factories Act 1934 (d) Factories Act 1881

Q. 14. The All India Trade Union Congress was founded in

(a) 1918 (b) 1920 (c) 1926 (d) 1947

Q. 15. The first president of AITUC was

(a) Lala Lajpat Rai (b) N. M. Joshi (c) B. P. Wadia (d) N. M. Lokhande

Q. 16. The Trade Unions Act was passed in

(a) 1923 (b) 1926 (c) 1929 (d) 1936

5.2 Level 2 - Understanding

Q. 17. The Indian Association, the most important pre-Congress body, was founded in 1876 by

(a) A. O. Hume (b) Surendranath Banerjea (c) Pherozeshah Mehta (d) M. G. Ranade

Q. 18. The Surat split of 1907 was between

(a) the Congress and the Muslim League (b) Gandhi and Bose (c) the Moderates and the Extremists (d) the Swarajists and the no-changers

Q. 19. The Lucknow Pact of 1916 achieved

(a) only the reunion of the Congress (b) dominion status (c) the abolition of separate electorates (d) the reunion of the Congress and a joint Congress-League reform scheme, with the Congress accepting separate electorates

Q. 20. Dyarchy in the provinces was introduced by the

(a) Montagu-Chelmsford Reforms 1919 (b) Morley-Minto Reforms 1909 (c) Indian Councils Act 1892 (d) Government of India Act 1935

Q. 21. The Simon Commission was boycotted because

(a) it recommended Partition (b) it contained no Indian member (c) it proposed separate electorates (d) it was appointed by the Congress

Q. 22. The Government of India Act 1935 provided for

(a) dyarchy in the provinces (b) immediate dominion status (c) provincial autonomy, with dyarchy shifted to the centre (d) universal adult franchise

Q. 23. Subhas Chandra Bose founded the Forward Bloc in

(a) 1929 (b) 1939 (c) 1942 (d) 1943

Q. 24. The principal political significance of the INA trials of 1945-46 was that

(a) they secured the INA's military objectives (b) they ended the Muslim League's demand for Pakistan (c) they led to the Cabinet Mission (d) with the Royal Indian Navy mutiny of 1946 they raised the question whether the Indian armed forces would remain reliable

Q. 25. The Cabinet Mission of 1946 proposed

- (a) a three-tier federation with grouping of provinces, rejecting full Pakistan (b) immediate Partition
(c) continued Crown rule for twenty years (d) dominion status for Bengal alone

Q. 26. The Radcliffe Line divided

- (a) India and China (b) Punjab and Bengal (c) Hyderabad and Junagadh (d) Kashmir and Ladakh

Q. 27. The first properly organised trade union in India, with members, subscriptions and officers, was the

- (a) Bombay Millhands Association, 1884 (b) Ahmedabad Textile Labour Association, 1920 (c) Madras Labour Union, 1918 (d) AITUC, 1920

Q. 28. The Royal Commission on Labour of 1929-31, the Whitley Commission, led directly to the

- (a) Trade Unions Act 1926 and Trade Disputes Act 1929 (b) EPF and MP Act 1952 (c) Industrial Disputes Act 1947 (d) Factories Act 1934 and Payment of Wages Act 1936

Q. 29. The Trade Unions Act 1926 was enacted because

- (a) litigation involving B. P. Wadia's union showed that organising a strike exposed unions to liability in tort, so statutory immunity was needed (b) unions demanded higher wages (c) the ILO required registration of employers (d) the Congress boycotted the legislatures

Q. 30. The Karachi Congress resolution of 1931 is important for labour history because

- (a) it founded AITUC (b) its demands for a living wage, limited hours and the right to organise are the direct ancestors of Articles 39, 41, 42 and 43 of the Directive Principles (c) it created the EPF (d) it abolished separate electorates

5.3 Level 3 - Recruitment Test standard**Q. 31. Match List-I with List-II and select the correct answer using the code below:**

List-I (Movement)	List-II (Year)
A. Non-Cooperation	1. 1930
B. Civil Disobedience	2. 1905
C. Quit India	3. 1920-22
D. Swadeshi	4. 1942

- (a) A-3 B-4 C-1 D-2 (b) A-1 B-3 C-4 D-2 (c) A-3 B-1 C-4 D-2 (d) A-2 B-1 C-4 D-3

Q. 32. Which one of the following statements about the Moderates is NOT correct?

- (a) They relied on petitions, resolutions and constitutional agitation (b) They built the economic critique of colonial rule (c) They secured the Indian Councils Act 1892 (d) They organised mass boycott and passive resistance

Q. 33. Match List-I with List-II and select the correct answer using the code below:

List-I (Act)	List-II (Principal feature)
A. Indian Councils Act, 1909	1. Provincial autonomy
B. Government of India Act, 1919	2. Separate electorates
C. Government of India Act, 1935	3. A limited elective element
D. Indian Councils Act, 1892	4. Dyarchy in the provinces

(a) A-2 B-4 C-1 D-3 (b) A-2 B-1 C-4 D-3 (c) A-4 B-2 C-1 D-3 (d) A-3 B-4 C-1 D-2

Q. 34. Consider the following statements about the Quit India Movement: 1. It was launched in August 1942 with the call "Do or Die". · 2. The leadership was arrested within hours, so the movement became leaderless and spontaneous. · 3. It forced the British to transfer power immediately. Which are correct?

(a) 1 only (b) 1 and 2 only (c) 2 and 3 only (d) 1, 2 and 3

Q. 35. Which one of the following was NOT a driver of labour legislation in colonial India?

(a) Humanitarian concern at conditions in the mills (b) Indian working-class organisation from 1918 onwards (c) The absence of any external standard or reporting obligation on the colonial state (d) Lancashire manufacturers' wish to raise Indian costs through regulation

Q. 36. Arrange the following in correct chronological order, earliest first: 1. Quit India Movement · 2. Founding of the Indian National Congress · 3. Partition of Bengal · 4. Non-Cooperation Movement

(a) 2-3-1-4 (b) 2-4-3-1 (c) 3-2-4-1 (d) 2-3-4-1

Q. 37. Match List-I with List-II and select the correct answer using the code below:

List-I (Action)	List-II (Associated with)
A. Kakori train robbery, 1925	1. Surya Sen
B. Chittagong armoury raid, 1930	2. Lala Har Dayal
C. Central Legislative Assembly bomb, 1929	3. Ram Prasad Bismil
D. Ghadar Party, 1913	4. Bhagat Singh

(a) A-3 B-1 C-4 D-2 (b) A-1 B-3 C-4 D-2 (c) A-3 B-4 C-1 D-2 (d) A-4 B-1 C-3 D-2

Q. 38. Which one of the following statements about the early trade union movement is NOT correct?

(a) AITUC was founded in 1920 with Lala Lajpat Rai as its first president (b) The Bombay Millhands Association of 1884 was a fully organised union with a membership register and funds (c) The Madras Labour Union of 1918 was the first properly organised trade union (d) INTUC was founded in 1947

Q. 39. Consider the following statements about the Poona Pact: 1. It was concluded between Gandhi and Ambedkar. · 2. It replaced separate electorates for the Depressed Classes with reserved seats within the general electorate. · 3. It reduced the number of seats available to them. Which are correct?

(a) 1 only (b) 2 and 3 only (c) 1 and 2 only (d) 1, 2 and 3

Q. 40. Match List-I with List-II and select the correct answer using the code below:

List-I (Statute)	List-II (Year)
A. Workmen's Compensation Act	1. 1936
B. Trade Unions Act	2. 1923
C. Payment of Wages Act	3. 1952
D. EPF and MP Act	4. 1926

(a) A-1 B-4 C-2 D-3 (b) A-2 B-1 C-4 D-3 (c) A-4 B-2 C-1 D-3 (d) A-2 B-4 C-1 D-3

Q. 41. Which one of the following statements about Partition is NOT correct?

(a) It resulted from a single decision taken by one actor (b) The League's position hardened after the provincial elections of 1937 (c) Mountbatten advanced the date of transfer, compressing the timetable (d) Separate electorates from 1909 institutionalised religion as a political category

Q. 42. Consider the following statements: 1. India was a founding member of the ILO in 1919. · 2. The Whitley Commission put provident funds and sickness insurance on the official agenda. · 3. The EPF and MP Act 1952 was enacted under Concurrent List Entry 24. Which are correct?

(a) 1 only (b) 1, 2 and 3 (c) 2 and 3 only (d) 1 and 2 only

6. Answers and Explanations

6.1 Level 1 - answers

Q	Ans	Why, and why the others fail
1	b	1885 , at Bombay, with 72 delegates. (a) 1876 is the Indian Association ; (d) 1906 the Muslim League
2	a	W. C. Bonnerjee . (b) Hume was the moving spirit but not president; (c) Naoroji presided later. Founder against first president is the standard trap
3	d	The retired British civil servant who was the moving spirit of its founding - and the safety-valve theory about his motives should be stated as contested, not as fact
4	a	Curzon , 1905, ostensibly for administrative efficiency and in fact to divide the politically active Bengali population. Annulled in 1911
5	d	Dhaka , under Nawab Salimullah , with the Aga Khan as first president
6	a	Morley-Minto, 1909 - the constitutional origin of communal representation, whose consequences run to 1947 . This is the most important single fact about the 1909 Act
7	c	13 April 1919 , at Amritsar, under General Dyer ; the Hunter Commission inquired and Tagore renounced his knighthood
8	d	Chauri Chaura , February 1922, where a crowd burned a police post killing 22 policemen - called off because the movement had turned violent
9	c	1930 - Sabarmati to Dandi, 12 March to 6 April , breaking the salt law
10	a	Lahore , December 1929, under Jawaharlal Nehru , which also called for 26 January 1930 to be observed as Independence Day - the reason that date was later chosen for the Constitution's commencement
11	c	Gandhi and Ambedkar . (a) Gandhi and Irwin signed the 1931 pact, which is the intended near-miss
12	c	1942 , with the call " Do or Die "
13	d	The Factories Act 1881 - factories with 100+ workers using power, children under 7 prohibited, machinery fenced. It covered no adult men at all
14	b	1920 - the first national trade union federation, founded partly so India could send genuine worker delegates to the ILO
15	a	Lala Lajpat Rai . (b) N. M. Joshi was the principal organiser, (c) B. P. Wadia founded the Madras Labour Union, and (d) Lokhande the 1884 association - four names, four different roles
16	b	1926 , granting registration and immunity from certain civil and criminal liability - and Q29 gives the reason it was needed

6.2 Level 2 - answers

Q	Ans	Why, and why the others fail
17	b	Surendranath Banerjea, 1876 - the most important precursor to the Congress
18	c	Moderates and Extremists , over the presidency and the Swadeshi resolution; the split lasted until the Lucknow Pact of 1916 . (d) Swarajists against no-changers is a real division but of 1923
19	d	Both the Congress's reunion AND a joint scheme with the League, with the Congress accepting separate electorates - which is why (a) is incomplete and (c) is the opposite of the truth. The high point of Hindu-Muslim political cooperation
20	a	Montagu-Chelmsford, 1919 - subjects split into transferred and reserved . (d) 1935 replaced dyarchy in the provinces with autonomy and moved dyarchy to the centre , which is the pairing to keep straight
21	b	It contained no Indian member - hence "Simon Go Back". Lala Lajpat Rai was injured in the Lahore lathi-charge and died soon after , which radicalised the revolutionaries
22	c	Provincial autonomy, with dyarchy shifted to the centre . It also proposed an All-India Federation that never came into being , and it is the principal source of the 1950 Constitution's text
23	b	1939 , after resigning the Congress presidency following disagreement with Gandhi. He took command of the INA in 1943
24	d	They raised the question whether the Indian armed forces would remain reliable - and with the RIN mutiny of February 1946 that was the question the British could not answer. The INA failed militarily and mattered politically
25	a	A three-tier federation with grouping of provinces, rejecting full Pakistan. The Constituent Assembly was elected under it , which is the link to F1.1
26	b	Punjab and Bengal - drawn in about five weeks and published after the transfer of power , which is part of why the population movements were so catastrophic
27	c	The Madras Labour Union, 1918, under B. P. Wadia . (a) The 1884 association is conventionally called the first labour ORGANISATION but was not a union in the modern sense , having no register or funds - and that qualification is exactly what this question tests
28	d	The Factories Act 1934 and the Payment of Wages Act 1936 . (a) predates the Commission and (c) and (b) are post-independence - though the Commission did put provident funds and sickness insurance on the agenda , which is how it connects to (b) indirectly
29	a	The Wadia litigation showed that organising a strike exposed a union to liability in tort for inducing breach of contract, so statutory immunity was needed. This causal link is the reason the Act exists , and it is the sort of "why" question that distinguishes understanding from memorisation
30	b	Its demands became Articles 39, 41, 42 and 43 of the Directive Principles - so the DPSP were drafted by the national movement before independence rather than invented in 1949 , which is the link back to F1.4

6.3 Level 3 - answers

Q	Ans	Why, and why the others fail
31	c	A-3 Non-Cooperation 1920-22 · B-1 Civil Disobedience 1930 · C-4 Quit India 1942 · D-2 Swadeshi 1905. The four mass movements in one question, and the spine of the chapter

Q	Ans	Why, and why the others fail
32	d	(d) is false and describes the EXTREMISTS. The Moderates' method was petition and constitutional agitation, which the Extremists dismissed as " political mendicancy ". (a), (b) and (c) are all correct, and (b) and (c) are the Moderates' genuine achievements
33	a	A-2 1909-separate electorates · B-4 1919-dyarchy in the provinces · C-1 1935-provincial autonomy · D-3 1892-a limited elective element. The two facts worth more than the rest are that 1909 gave separate electorates and 1919 gave dyarchy
34	b	1 and 2 only. Statement 3 overstates it. Quit India did not force an immediate transfer of power and was suppressed within months - but it demonstrated that India could not be governed by consent, so afterwards the question was when to leave, not whether. That is the accurate formulation
35	c	(c) is the false statement, and the ILO is the reason. India was a FOUNDING member of the ILO in 1919, which created both an external standard and a reporting obligation - and a large part of Indian labour legislation between 1919 and 1947 traces to an ILO Convention, the Factories Act 1922's sixty-hour week being the clearest case. (a), (b) and (d) were all genuine drivers, including the cynical Lancashire one
36	d	2-3-4-1: Congress founded 1885 , Partition of Bengal 1905 , Non-Cooperation 1920-22 , Quit India 1942
37	a	A-3 Kakori-Ram Prasad Bismil (with Ashfaqullah Khan) · B-1 Chittagong-Surya Sen · C-4 Assembly bomb-Bhagat Singh · D-2 Ghadar Party-Lala Har Dayal. Bhagat Singh, Rajguru and Sukhdev were executed on 23 March 1931
38	b	(b) is false. The 1884 Bombay Millhands Association is conventionally called the first labour organisation but had no membership register or funds and was not a union in the modern sense - the Madras Labour Union of 1918 was the first properly organised one. (a), (c) and (d) are correct
39	c	1 and 2 only. Statement 3 inverts the outcome: the Pact gave the Depressed Classes a substantially LARGER number of reserved seats than the Communal Award's separate electorates would have provided. It is the origin of reservation of seats, and it connects to Art 243D in F1.9
40	d	A-2 Workmen's Compensation 1923 · B-4 Trade Unions 1926 · C-1 Payment of Wages 1936 · D-3 EPF and MP 1952. These four dates are the spine of Modules 2 and 3 and should be automatic
41	a	(a) is false, and it is the answer that fails an interview. Partition resulted from the institutionalisation of communal representation from 1909, the League's post-1937 calculation, Congress misjudgements, a British decision to leave quickly, and the violence of 1946 - and the catastrophe was worsened by the compression of the timetable. (d), (b) and (c) are all correct
42	b	All three are correct, and together they are three links of the chain from 1881 to your own desk: the ILO's founding standard, the Whitley Commission's agenda-setting, and the constitutional competence under Entry 24 that made the EPF Act possible. This is the question to be able to answer in an interview

7. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F5.10 - THE FREEDOM MOVEMENT AND LABOUR

THE ANALYTICAL POINTS THIS CHAPTER TURNS ON each mass movement was launched on a **specific universally felt grievance** and each was **called off or collapsed without achieving its stated aim** - but the effect was **cumulative, leaving the Congress larger and more legitimate each time**, so judging them by their immediate demands is the wrong test · **Quit India did not force the British out, but after it the question was WHEN to leave, not whether** · **the INA failed militarily and mattered politically**, because with the RIN mutiny it raised the question **whether the Indian armed forces would stay reliable** · **the revolutionaries never had the numbers to expel British power** - their importance was sustaining resistance when constitutional politics stalled, and **Bhagat Singh's execution did more politically than any of his actions** · **PARTITION - name several causes, never one separate electorates from 1909**

institutionalised religion as a political category · **the League's post-1937 calculation** that only a separate state secured power · **Congress misjudgements** · **a British decision to leave quickly, with Mountbatten advancing the date** · **the violence of 1946** · **and the human catastrophe was worsened by the compressed timetable** - attributing it to one actor's malice is the answer that fails

WHY LABOUR LAW ARRIVED - FOUR PRESSURES, and the third is the least known **humanitarian concern** · **Indian working-class organisation** · **LANCASHIRE'S SELF-INTEREST** - **British textile manufacturers wanted Indian mills regulated precisely to raise Indian costs**, which explains why a state pursuing de-industrialisation legislated on factory conditions at all · **the ILO from 1919, with INDIA A FOUNDING MEMBER**, creating an external standard and a reporting obligation - **the Factories Act 1922's sixty-hour week is the clearest instance**

THE TRADE UNIONS ACT'S CAUSE - the best "why" in the chapter in the **Buckingham and Carnatic Mills litigation** · **B. P. WADIA's union was held exposed to liability in tort for inducing breach of contract**, so **organising a strike was legally hazardous** · hence the **TRADE UNIONS ACT 1926, granting registration and IMMUNITY** · the case is why the statute exists

THE WHITLEY COMMISSION the **ROYAL COMMISSION ON LABOUR 1929-31** - the most important inquiry in Indian labour history · documented wages, hours, housing, indebtedness and the **jobber system** · **produced the FACTORIES ACT 1934 and the PAYMENT OF WAGES ACT 1936**, and **put PROVIDENT FUNDS and SICKNESS INSURANCE on the agenda for the first time** · **THE KARACHI RESOLUTION 1931** the Congress's own labour programme - **a living wage, limited hours, protection for women and children, the right to organise** · **these clauses are the direct ancestors of ARTICLES 39, 41, 42 and 43** · so the **DPSP** were drafted by the national movement **BEFORE independence, not invented in 1949**

WHY SO MANY FEDERATIONS AITUC 1920 split on **political** rather than industrial lines - **1929 and 1931**, then **INTUC 1947 (Congress), HMS 1948, UTUC 1949, BMS 1955, CITU 1970** · so Indian industrial relations law is built around the problem of **MULTIPLE unions in one workplace**, which is why recognition of a bargaining agent and the tests in F2.2 and F2.9 are so elaborate - **the fragmentation is historical and the law is a response to it**

THE CHAIN TO YOUR DESK - the single most valuable thing in this chapter mill conditions → **FACTORIES ACT 1881** (humanitarian + Lancashire) → workers organise, **LOKHANDE 1884**, then the first real union under **B. P. WADIA 1918** → **ILO 1919, India a founding member** → **AITUC 1920**, partly to send worker delegates to the ILO → **the Wadia litigation** → **TRADE UNIONS ACT 1926** with immunity → **WHITLEY 1929-31** puts provident funds on the agenda → **KARACHI 1931** → **Arts 39, 41, 42, 43** → **ID ACT 1947**, then **Factories, Minimum Wages and ESI 1948** → **EPF AND MP ACT 1952 under Concurrent List Entry 24**, giving effect to **Article 41** → **three schemes, a tripartite CBT, and the quasi-judicial power under SECTION 7A that you will exercise** · Indian labour law was **WON, not granted** - by strikes, by litigation that failed and forced legislation, by an international standard, and by a national movement that wrote workers' rights into its programme sixteen years before independence

8. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F5.10 - FREEDOM MOVEMENT AND LABOUR

INC 1885 · Bombay · 72 delegates · W. C. BONNERJEE president · A. O. HUME the moving spirit

Indian Association 1876 = SURENDRANATH BANERJEA · safety-valve theory = CONTESTED MODERATES: Naoroji, Gokhale, Ranade, Banerjea, Mehta · petitions · won the 1892 Act · built the DRAIN critique

EXTREMISTS: LAL-BAL-PAL + Aurobindo · "Swaraj is my birthright" · swadeshi, boycott, national education

PARTITION OF BENGAL 1905 = CURZON · annulled 1911 · triggered SWADESHI

MUSLIM LEAGUE 1906 DHAKA · SURAT SPLIT 1907 · reunion at LUCKNOW 1916

1909 MORLEY-MINTO = SEPARATE ELECTORATES · 1919 MONT-FORD = DYARCHY · 1935 = PROVINCIAL AUTONOMY

LUCKNOW PACT 1916 = Congress reunion + Congress-League scheme, Congress ACCEPTED separate electorates

HOME RULE LEAGUES 1916 = TILAK (Poona) + ANNIE BESANT (Madras)

GANDHI: CHAMPARAN 1917 · AHMEDABAD MILL STRIKE 1918 · KHEDA 1918

ROWLATT ACT 1919 · JALLIANWALA BAGH 13 APRIL 1919 (DYER) · HUNTER COMMISSION

NON-COOPERATION 1920-22 · called off after CHAURI CHAURA (Feb 1922)

SWARAJ PARTY 1923 = C. R. DAS + MOTILAL NEHRU · SIMON COMMISSION 1927-28, no Indian member

LAHORE 1929 = PURNA SWARAJ · 26 JANUARY 1930 named Independence Day

DANDI MARCH 12 MARCH - 6 APRIL 1930 · salt chosen: taxed, universal, indefensible

GANDHI-IRWIN PACT 1931 · POONA PACT 1932 = GANDHI + AMBEDKAR, reserved seats replace separate electorates

Gol ACT 1935 = the principal source of the 1950 Constitution

1937 elections → Congress ministries · resigned 1939 · LAHORE RESOLUTION 1940 = Pakistan demand

QUIT INDIA AUG 1942 "Do or Die" · leadership arrested at once · parallel govts Ballia, Tamluk, Satara

BOSE: FORWARD BLOC 1939 · INA 1943 · INA TRIALS 1945-46 + RIN MUTINY 1946 = the loyalty question

CABINET MISSION 1946 = three-tier federation, grouping · Constituent Assembly elected under it

DIRECT ACTION DAY 16 AUG 1946 · MOUNTBATTEN PLAN 3 JUNE 1947 · RADCLIFFE LINE = Punjab + Bengal

REVOLUTIONARIES: KHUDIRAM BOSE 1908 · GHADAR 1913 (Har Dayal) · KAKORI 1925 (BISMIL, ASHFAQULLAH)

HSRA 1928: BHAGAT SINGH, AZAD, RAJGURU, SUKHDEV · Assembly bomb 1929 · EXECUTED 23 MARCH 1931

CHITTAGONG 1930 = SURYA SEN (with Pritilata, Kalpana Datta)

LABOUR: FACTORIES ACT 1881 = FIRST, covered NO adult men · driven partly by LANCASHIRE self-interest

LOKHANDE 1884 = first labour ORGANISATION (not a real union) · B. P. WADIA 1918

MADRAS LABOUR UNION = first real one

ILO 1919, INDIA A FOUNDING MEMBER · AITUC 1920, LALA LAJPAT RAI president, N. M. JOSHI organiser

WORKMEN'S COMPENSATION 1923 = first social security statute

WADIA CASE → TRADE UNIONS ACT 1926 (registration + IMMUNITY) · TRADE DISPUTES ACT 1929

WHITLEY / ROYAL COMMISSION ON LABOUR 1929-31 → FACTORIES ACT 1934 + PAYMENT OF WAGES ACT 1936

Whitley put PROVIDENT FUNDS and SICKNESS INSURANCE on the agenda

KARACHI 1931 → ARTS 39, 41, 42, 43 - the DPSP were drafted BEFORE independence

STANDING ORDERS 1946 · ID ACT 1947 · FACTORIES + MINIMUM WAGES + ESI 1948 · EPF 1952

Federations split on POLITICS: INTUC 1947, HMS 1948, UTUC 1949, BMS 1955, CITU 1970

Multiple unions per workplace is WHY recognition law is so elaborate

THE CHAIN: 1881 → 1918 → ILO 1919 → AITUC 1920 → TU Act 1926 → Whitley 1931 → Karachi 1931 → Arts 41 → EPF 1952 → Entry 24 → Section 7A

Indian labour law was WON, not granted